COMMERCIAL GENERAL LIABILITY
CG 85 84 01 14

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED – DESIGNATED OWNERS, LESSEES OR CONTRACTORS – COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name Of Additional Insured Person(s) Or Organization(s):

Kier Construction Corporation
3710 Quincy Ave
Ogden, UT 84403

Location And Description Of Completed Operations:

Description: Pre-Fab Building
Location: 850 S 2000 W Syracuse, UT 84075

(Information required to complete this Schedule, if not shown above, will be shown in the Declarations.)

A. **Paragraph 2.** under **Section II – Who Is An Insured** is amended to include as an insured any person or organization shown in the Schedule, whom you have agreed to add as an additional in a written contract or written agreement. Such person or organization is an additional insured but only with respect to liability for "bodily injury" or "property damage":

1. Caused by "your work" performed for that additional insured that is the subject of the written contract or written agreement and at the location designated in and described in the Schedule of this endorsement; and
2. Included in the "products-completed operations hazard".

However:

a) The insurance afforded to such additional insured only applies to the extent permitted by law; and

b) If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

The insurance provided by this endorsement applies only if the written contract or written agreement is signed prior to the "bodily injury" or "property damage".

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We have no duty to defend an additional insured under this endorsement until we receive written notice of a "suit" by the additional insured as required in Paragraph **b.** of Condition **2. Duties In The Event Of Occurrence, Offense, Claim Or Suit** under **Section IV – Commercial General Liability Conditions.**

B. With respect to the insurance provided by this endorsement, the following are added to Paragraph **2. Exclusions** under **Section I – Coverage A – Bodily Injury And Property Damage Liability:**

The insurance does not apply to:

1. "Bodily injury" or "property damage" that occurs prior to you commencing operations at the location where such "bodily injury" or "property damage" occurs.
2. "Bodily injury" or "property damage" arising out of the rendering of, or the failure to render, any professional architectural, engineering or surveying services including:
   a. The preparing, approving or failure to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawing and specifications; and
   b. Supervisory, inspection, architectural or engineering activities.

C. With respect to the insurance afforded to these additional insureds, the following is added to **Section II – Limits of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by contract or agreement; or
2. Available under the applicable Limits of Insurance shown in the Declaration.

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

D. With respect to the insurance afforded by this endorsement, **Section IV – Commercial General Liability Conditions** is amended as follows:

1. The following is added to Paragraph **2. Duties in The Event Of Occurrence, Offense, Claims Or Suit:**

   An additional insured under this endorsement will as soon as practicable.

   a. Give written notice of an "occurrence" or an offense that may result in a claim or "suit" under this insurance to us;
   b. Tender the defense and indemnity of any claim or "suit" to all insurers whom also have insurance available to the additional insured; and
   c. Agree to make available any other insurance which the additional insured has for a loss we cover under this Coverage Part.
   d. We have no duty to defend or indemnify an additional insured under this endorsement until we receive written notice of a "suit" by the additional insured.

2. Paragraph **4.**, of **Section IV – Commercial General Liability Conditions** is amended as follows:
   a. The following is added to Paragraph **a. Primary Insurance:**

      If an additional insured's policy has an Other Insurance provision making its policy excess, and you have agreed in a written contract or written agreement to provide the additional insured coverage on a primary and noncontributory basis, this policy shall be primary and we will not seek contribution from the additional insured's policy for damages we cover.

   b. The following is added to Paragraph **b. Excess Insurance:**

      When a written contract or written agreement, other than a premises lease, facilities rental contract or agreement, an equipment rental or lease contract or agreement, or permit issued by a state or political subdivision between you and an additional insured

does not require this insurance to be primary or primary and non-contributory, this insurance is excess over any other insurance for which the additional insured is designated as a Named Insured.

Regardless of the written agreement between you and an additional insured, this insurance is excess over any other insurance whether primary, excess, contingent or on any other basis for which the additional insured has been added as an additional insured on other policies.

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